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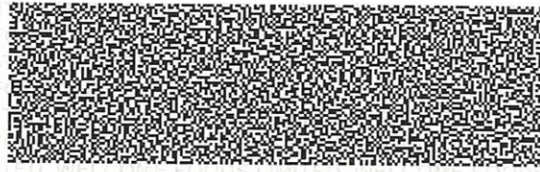
INDIA NON JUDICIAL

Government of Karnataka

Rs. 1,000

e-Stamp

Certificate No. : IN-KA85647005289035R
 Certificate Issued Date : 31-Aug-2019 05:06 PM
 Account Reference : NONACC (FI)/ kaksfcl08/ HEBBAGODI/ KA-BN
 Unique Doc. Reference : SUBIN-KAKAKSFCL0894669623879258R
 Purchased by : MAHENDRA 5IVEPILLARS
 Description of Document : Article 12 Bond
 Description : REVENUE SHARING AGREEMENT
 Consideration Price (Rs.) : 0
 (Zero)
 First Party : WELCOME FOODS LIMITED
 Second Party : MAHENDRA 5IVEPILLARS
 Stamp Duty Paid By : MAHENDRA 5IVEPILLARS
 Stamp Duty Amount(Rs.) : 1,000
 (One Thousand only)



THE PAVAGADA SOUHARDA
 MULTIPURPOSE CO-OP. LTD
 HEBBAGODI BRANCH

MAHENDRA 5IVEPILLARS
 IN-KA85647005289035R
 RS. 1,000
 31-AUG-2019 05:06 PM

Please write or type below this line

SHARING AGREEMENT

SHARING/ALLOCATION AGREEMENT TO DEVELOPMENT AGREEMENT IS EXECUTED ON THIS ~~FOURTH~~ DAY OF SEPTEMBER TWO THOUSAND NINETEEN (04.09.2019) AT BENGALURU:

For WELCOME FOODS LTD

[Signature]

Authorised Signatory/Director

For Mahendra 5ive Pillars LLP

[Signature]
Designated Partner

Statutory Alert:

1. The authenticity of this Stamp Certificate should be verified at "www.shcllestamp.com". Any discrepancy in the details on this Certificate and as available on the website renders it invalid.
2. The onus of checking the legitimacy is on the users of the certificate.
3. In case of any discrepancy please inform the Competent Authority.

BETWEEN

M/s. WELCOME FOODS LIMITED (Formerly known as Bulgarian Foods Private Limited) A Company registered under companies Act 1956, and having its registered office at No.1, Veerasandra Industrial Estate, Hosur Road, Bangalore. Represented by it's Director and Authorized signatory **Mrs. HEMAMALINI**, aged about 48 years, W/o Sri. AnandParanthaman, residing at No.2, Old No.9, North Cresnet Road, T Nagar, Chennai-17. Authorized vide board resolution dated 29th August, 2019, hereinafter referred to as **OWNER**, (which expression shall unless repugnant to the context or meaning thereof be deemed to mean and include its successor-in-interest, executors, and administrators and permitted assignees) **OF THE FIRST PART:**

AND

M/s. MAHENDRA SIVEPILLARS LLP, a Partnership firm incorporated under the Limited Liability Partnership Act, 2008 and having its registered office at # LLP shall be at No 51, 17th Cross, 12th Main Road, HSR Layout, 6th Sector, Bangalore, Karnataka 560102, represented by its Designated Partner/s :

Herein after referred to as the **BUILDER**, which expression shall, unless repugnant to the context or meaning thereof, be deemed to mean and include its successors in interest and permitted assigns) **OF THE SECOND PART:**

The OWNER and the BUILDER shall hereinafter individually referred to as "**Party**" and collectively as "**Parties**".

WHEREAS:

- A.** By virtue of the Development Agreement dated 07/09/2016 registered as Document ABL-1-03157/2016-17 in Book-I and stored in C.D.NO. ABLD____, in the Office of the Sub-Registrar, Attibele, Anekal, registered on 21/12/2016 and the parties have deliberated to have change in the ratio of such allotted share and have come to a mutual understanding and as per their [i.e., Owner and Builder] willingness therein have come forward to change the ratio as mentioned in the Development Agreement dated 07/09/2016 and also have mutually agreed to extend the completion period of the project to 36 months from the date of signing supplementary agreement. In addition to induct another Promoter namely **SivePillars**, a company incorporated under the Indian Companies Act, Having its registered office at 705, Sring block, Windsor

For WELCOME FOODS LTD



Authorised Signatory/Director

For Mahendra Sive Pillars LLP



Designated Partner

For WELCOME FOODS LTD

Authorised Signatory/Director

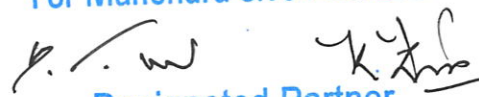
Four Seasons, Behind Meenakshi Temple, B G Road, Bangalore 560 076 along with the Second Party to complete the development of the schedule property in terms of Principal Joint Development Agreement. Accordingly, the OWNER had entered into Supplementary Agreement to Development Agreement dated 04/09/2019 registered as document no. ABL-1-03725/2019-20, Boo-I, in the office of Sub Registrar, Attibele, Anekal, and simultaneously OWNER executed a General Power of Attorney dated 07/09/2016 registered as Document No. ABL-4-00144/2016-17 in Book-IV and stored in C.D No.ABLD___, in the office of the Sub-Registrar, Attibele, Anekal and Addendum to General Power of Attorney dated 04/09/2019 registered as document no. ABL-4-0070/2019-20, Book-4, Sub-Registrar, Attibele, Anekal, empowering the BUILDER to secure approvals, develop and sell in terms of the Development Agreement (**"Principal Agreement of JD"**) the OWNER has offered the property being Plot No.1, CMC katha No.4/521/17, 18, 19 and 20 carved out of Survey No.17, 18, 19 and 20, situated at Veerasandra Village, Veerasandra Industrial Area, Attibele Hobli, Anekal Taluk, the tune of 12018 square meters, which is more fully mentioned and described in the **Schedule** hereunder and hereinafter referred to as **Schedule Property** for Development and the BUILDER has agreed to construct Commercial complex cum Mall (**"Commercial complex cum Mall"**) on certain terms and conditions as mentioned in Principal Development on 07/09/2016 therein.

- B. The BUILDER by virtue of the powers conferred upon it/them under the Development Agreement and the Power of Attorney, had secured Commercial complex cum Mall Development Plan sanctioned from the Bangalore Development Authority vide L.P. No.2/S/01/2019-19 dated, 27/04/2018 (**"Development Plan"**).
- C. The BUILDER has obtained Commercial complex cum Mall Development Plan from Bangalore Development Authority vide L.P. No.2/S/01/2019-19 dated, 27/04/2018 ("Building Plans") for construction comprise of Two (02) Basement Floor, Lower Ground Floor, Ground Floors and Four (04) upper floors .

For WELCOME FOODS LTD


Authorised Signatory/Director

For Mahendra Five Pillars LLP


Designated Partner

For Mahendra Five Pillars LLP

Designated Partner

- D. In accordance with the 'Principal Agreement of JDA', the OWNER is entitled to 32.50% of the total Saleable Super Built-up Area in the Commercial Complex cum Mall (hereinafter referred to as **"OWNER'S SHARE"/ "OWNER'S CONSTRUCTED AREA"**) and the BUILDER having undertaken to construct/develop the Commercial Complex cum Mall at its cost and expense is entitled to the balance Saleable Super Built-up Area of **67.5%** in the Commercial Complex cum Mall hereafter referred to as **"BUILDER'S" SHARE"/" BUILDER'S CONSTRUCTED AREA"**.
- E. It has been mutually agreed and decided between the Parties that the Builder shall undertake the marketing and managing of the said Commercial Complex cum Mall, which includes but not limited to identifying the prospective lessees for occupying the entire constructed area including the Owner's Constructed Area and to manage and maintain the completed Mall project by collecting the rentals / CAM [Common Amenities Maintenance] charges along with statutory charges.
- F. The Parties herein deem it necessary and expedient to reduce the terms and conditions pertaining to the 'Principal Agreement of JD of JD' from sharing of Saleable Super Built up Area to revenue sharing of Proceeds (as defined hereinafter) subject to the fulfillment of the certain terms and conditions as provided hereinafter. Hence, this Agreement.

NOW THIS SHARING AGREEMENT WITNESSETH AS FOLLOWS:

1. INTERPRETATIONS

1.1 Unless the context of this Agreement otherwise requires:

- (i) Unless otherwise defined in this Agreement or the context so requires, all capitalized terms used in this Agreement shall continue to ascribe to the meaning as defined under the 'Principal Agreement of JD'; and
- (ii) Except to the extent amended and supplemented by this Agreement, all terms and conditions of the 'Principal Agreement of JD' shall remain unchanged and in full force and effect. This Agreement and the 'Principal Agreement of JD' shall be read and constructed as one and the same documents and this Agreement shall be considered to be a part of the 'Principal Agreement of

For WELCOME FOODS LTD



Authorised Signatory/Director

For Mahendra Sive Pillars LLP



Designated Partner

JD'. Without prejudice to the foregoing, where the context allows references in the Principal Agreement of JD' to "the Agreement" shall be read and constructed as reference to the 'Principal Agreement of JD' as amended and supplemented by this Agreement. This Agreement shall be conterminous with the 'Principal Agreement of JD' and vice-versa.

1.2 **Other Charges**" shall mean and include the following:

- (i) Utility Charges;
- (ii) Stamp duty, registration fees and documentation fees payable by the intending Lessees in respect of the Commercial Complex cum Mall;
- (iii) Maintenance costs including advance maintenance charges and contributions as may be received by the BUILDER in relation to the Project (excluding Maintenance Deposits);
- (iv) Maintenance Deposits;
- (v) GST/value added tax and any other taxes, rates, duties and statutory charges that may be levied / applicable in respect of the Commercial Complex cum Mall;

1.3 **"Proceeds"** shall mean the aggregate of the proceeds received from the prospective Lessees of the Commercial units in the form of advances, part payments and also from the lease of the Commercial units including the car parking spaces granted to the intending Lessees, excluding CAM [Common Amenities Maintenance] which shall be payable to Builder exclusively.

1.4 **"Owner's Revenue Share"** shall mean the entitlement of the Owner's share of the Project Revenues which is equivalent to **32.50%** of the Revenues;

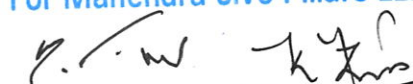
1.5 **"BUILDER's Revenue Share"** shall mean the entitlement of the BUILDER in the Project Revenue which is equivalent to **67.50%** of the Revenues;

2. PURPOSE OF THIS AGREEMENT AND UNDERSTANDING

For WELCOME FOODS LTD


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Designated Partner

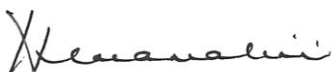
2.1 This Agreement shall be read in continuation of the 'Principal Agreement of JD' and shall form part and parcel of the same transaction and except what is stated herein all other terms and conditions mentioned in the aforesaid 'Principal Agreement of JD' shall remain the same and in full force and effect.

2.2 The Parties specifically agree that:

- (a) In terms of the 'Principal Agreement of JD', it has been agreed between the Parties that, Owner's Entitlement under the 'Principal Agreement of JD', Owner authorizes the BUILDER shall develop and construct and all the Saleable Super Built Up Area in the Commercial Complex Project shall be leased, rented and/or conveyed by BUILDER to prospective intending customers / Lessees as finalized by the Builder; and
- (b) Provided, notwithstanding anything provided in any agreement between the Parties the sharing of revenue Proceeds in respect of this Agreement shall only be restricted to the entitlement of the Parties which they would otherwise be entitled to under the 'Principal Agreement of JD' in lieu of their entitlements in the Saleable Super Built-Up Area in the Commercial Complex.
- (c) The Parties further agree that on and upon execution of this Agreement the OWNER hereby permits the BUILDER to lease, leave and license and/or rental agreements, in any manner the entire Commercial Complex including the Owner's Entitlement and realize Revenue Proceeds there from for the purpose of sharing and allocation of such Revenue Proceeds.
- (d) In the event of Owner intending/proposing to sell its Saleable Super Built Up Area in the Commercial Complex to any of the intending Purchaser, the Owner shall give an offer to the Builder as first right of refusal and if the Builder have refused to purchase the same at the best available market price Owner shall be entitled to sell or transfer otherwise to any third parties.

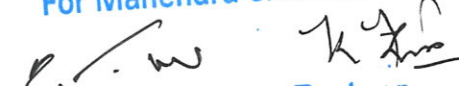
3. MECHANISM FOR PAYMENT AND SHARING OF PROCEEDS:

For WELCOME FOODS LTD



Authorised Signatory/Director

For Mahendra Five Pillars LLP


Designated Partner

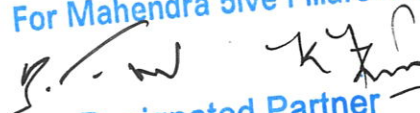
- 3.1 Upon realization and receipt of Revenue Proceeds from the Commercial Complex, the BUILDER shall deposit all such Revenue Proceeds in a bank account designated by the Parties ("**Designated Bank Account**").
- 3.2 This Agreement shall come into effect from the date of execution of this Agreement.
- 3.3 All payments of the Revenue Proceeds to be made to the OWNER from the Designated Bank Account shall be made within 7 (seven) days from the date of receipt of payment by the Builder once the Building is completed in all respects subject to the terms of the lease deed and/or leave and license entered therein,
- 3.4 All the Revenues shall be received by way of cheques/ demand drafts favouring "**M/s. MAHENDRA SIVEPILLARS LLP,**" in a specified account to be opened within 15 (fifteen) days from the date thereof ("**Designated Bank Account**") subject to completion of the Commercial Complex and execution of lease deed thereon specifically in regard to Owners Constructed area and shall be appropriately accounted for. The Revenues shall be deposited into such Designated Bank Account operated by the BUILDER with standing instructions to the bank to transfer the Owner's Revenue Share and BUILDER's Revenue Share to their respective accounts opened in the bank/s.
- 3.5 It is clarified that all amounts receivable as Other Charges or CAM charges shall be deposited in the BUILDER's Account. The BUILDER shall, at its description, be entitled to utilize all the amounts in the BUILDER's Account for the purpose for which it is collected in respect of which the OWNER are not liable. The Maintenance Deposits shall be deposited in a separate account specified by the BUILDER. It is expressly clarified that any interest earned on the amount in the BUILDER's Account shall accrue solely to the BUILDER.
- 3.6 The BUILDER shall provide a statement at the end of every month from the Effective Date detailing the exact number of Commercial units either rented or in respect of which Agreements of lease have been entered in to in the proceedings months and the amounts received by the BUILDER in relation thereto.

For WELCOME FOODS LTD



Authorised Signatory/Director

For Mahendra Sive Pillars LLP



Designated Partner

4. REPRESENTATION AND WARRANTIES

4.1 The Parties represent and warrant, as on the date of execution of this Agreement, that :

- (a) The Parties have the full legal capacity to enter in to this Agreement and to perform the obligations under this Agreement and, the Parties have taken all necessary actions, including passing all resolutions at the meetings of its board of directors, to authorize such execution, delivery and the performance of such obligations under the Agreement;
- (b) The Execution and Delivery by the Parties of this Agreement and the performance of the obligations of the Parties under it does not and shall not:
 - (i) Conflict with or violate any provision of its constitutional documents;
 - (ii) Require any permission, authorization, consent or approval of, any Governmental Authority;
 - (iii) Violate, conflict with or constitute a default under any applicable law, a lien, lease, judgment, award, ordinance, order, writ, injunction, decree, statute, rule or regulation or any other restrictions of any kind or character applicable to the Parties and/ or any of its properties or assets.

5. MISCELLANEOUS PROVISIONS:

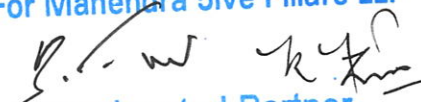
5.1 Nature of Agreement

It is understood that Parties are independent entities engaged in the conduct of their own business. This Agreement (or any of the Agreements contemplated by it) shall not constitute them as the agent or Partner of each other for any purpose whatsoever, and neither Parties shall have the right or authority to assume, create or incur any liability or authority to assume, create or incur any liability or obligation of any kind, express

For WELCOME FOODS LTD


Authorized Signatory/Director

For Mahendra Sive Pillars LLP


Designated Partner

or implied, in the name of or on behalf of the other nor shall the Parties have any authority to act for or on behalf of the other.

5.2 Amendment

This Agreement shall not be amended, altered or modified except by an instrument in writing signed by or on behalf of all the Parties.

5.3 Severability

If any provision of this Agreement is invalid or unenforceable or prohibited by law, it shall be treated for all purposes as severed from this Agreement and ineffective to the extent such invalidity or unenforceability, without affecting in any way the remaining provisions hereof, which shall continue to be valid and binding. The Parties shall then use all reasonable endeavors to replace the invalid or unenforceable or prohibited provision by a valid provision the effect of which is as close as possible to the intended effect of the invalid or unenforceable or prohibited provision.

5.4 Conflict

In the event of any ambiguity or discrepancy between the provisions of the Agreement and the charter document(s) of any of the Parties, then with respect to such Party it is intended that the provisions of this Agreement shall prevail and accordingly the concerned Party shall exercise all voting and other rights and powers available to them so as to give effect to the provisions of this Agreement and shall further if necessary procure any required amendment to the charter document to the extent necessary.

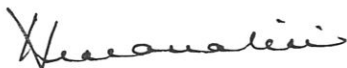
5.5 Further Assurances

The Parties shall execute all such deeds, documents, acts and things as the other Parties may from time to time require in order to give full effect to this Agreement.

5.6 Agreement in Counterparts

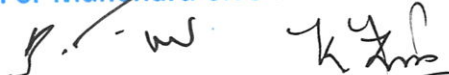
This Agreement may be executed in two counterparts, each of which will be deemed an original, with the same effect as if the

For WELCOME FOODS LTD



Authorised Signatory/Director

For Mahendra Sive Pillars LLP



Designated Partner

signatures thereto and hereto were upon the same instrument, but all of which together will constitute one and the same instrument.

5.7 Authorisation

The Persons signing this Agreement on behalf of the respective Parties hereto represent and covenant that they have the authority to sign and execute this document on behalf of the Party for whom they are signing.

5.8 In the event of any breach of the terms and conditions of this agreement of sale by the either party, the other party the aggrieved party) shall be entitled to enforce specific performance of this agreement and also for recovery of all cost, expenses and losses incurred by the aggrieved party, as a consequence of such breach, from the party committing breach.

SCHEDULE 'A' PROPERTY

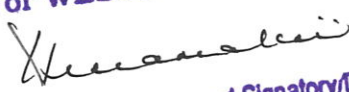
All that piece and parcel of immovable property being Plot No.1, Old CMC katha No.4/521/17, 18, 19 and 20 carved out of Survey No.17, 18, 19 and 20, situated at Veerasandra Village, Veerasandra Industrial Area, Attibele Hobli, Anekal Taluk, the tune of 12018 square meters and bounded on the:

East by	:	Portion of property belonging to Heinz India (P) Ltd., and Plot No.2;
West by	:	National Highway NH-7;
North by	:	Private property and KIADB property;
South by	:	Portion of property belonging to Heinz India (P) Ltd., and thereafter Road;

SCHEDULE 'B' PROPERTY

[BELONG TO OWNERS' CONSTRUCTED AREA]

All that 32.50% undivided share, right, title and interest equivalent to 42,042.56 square feet in the land of the Schedule 'A' property together with built up area of 2,04,713.36 square feet (32.50%) out of total 6,29,887.289 square feet which including car parking and which is marked in Red color to the attached plan.

For WELCOME FOODS LTD

Authorized Signatory/Director

For Mahendra Five Pillars LLP

Designated Partner

IN WITNESS WHEREOF THE PARTIES ABOVENAMED HAVE SIGNED AND EXECUTED THIS ALLOCATION AGREEMENT ON THE DAY MONTH AND YEAR FIRST ABOVE WRITTEN IN THE PRESENCE OF THE WITNESSES ATTESTING HEREUNDER.

WITNESSES:

- 1) *Sreedevi choudary*
SREEDevi CHoudary
249, 14th cross, IInd Block
R.T. Nagar.
Bannamore - 560032.
- 2) *G.V. Acharya*
~~_____~~
G.V. Acharya
028 VMARKS CHALST
Ananth Nagar
Bannamore 5600100
Mob 8884034342

For WELCOME FOODS LTD

[Signature]

Authorised Signatory/Director

FIRST PARTY

For Mahendra Five Pillars LLP

[Signature] *[Signature]*
Designated Partner

SECOND PARTY.